

FV CHEATSHEET**1.1 Common Principles****1.1.1 Legislation – common provisions**

Provision		Section	Where to use
Purpose of the Act	To maximise safety for children and adults who have experience family violence; and prevent and reduce family violence to the greatest extent possible; and promote the accountability of perpetrators.	s.1 FVPA	A reluctant court to grant an order. When AFM is not supportive When RESP is opposed to IIVO
Family Violence definition	Physical, sexual, emotional, psychological, economic, threatening, coercive, or controlling or dominating. It is also behaviour that causes a child to hear or witness or be exposed to the effects of the above. Behaviour can constitute FV even if it would not constitute criminal offence.	s.5 FVPA	Where a court does not find behaviour constitutes FV. Where court isn't minded to put child on the IVO due to them not being present
Meaning of Family Member	Person who is or has been a spouse or domestic partner; intimate personal relationship; relative; child who resides regularly with the person. Any person where they are regarded as a family member. Considerations to the nature of the relationship – refer s.8(3)	s.8 FVPA	If Defence argue it is not FV. If court of the view that they are not family members, refer to below re: FV vs. PSIO

1.1.2 Cases – common with links

Case	What it says	Link
L v L	Power of court to vary Interim orders Court cannot vary IVO on their own motion	L v L [2016] VSC 182 - BarNet Jade - BarNet Jade
Zion Shalom No.1	Reverse onus re: FVSN	Zion-Shalom v Magistrates' Court of Victoria (No. 1) [2009] VSC 476 - BarNet Jade - BarNet Jade
Zion Shalom No. 2	Interim IVO considerations	Zion-Shalom v Magistrates' Court of Victoria (No. 2) [2009] VSC 477 - BarNet Jade - BarNet Jade
NBT v Magistrates Court	Substituting Victoria Police as the applicant for non-police apps	NBT v Magistrates' Court of Victoria [2023] VSC 461 - BarNet Jade - BarNet Jade
Pickford v Chief Commissioner of Police	s.189 Application/ App to be deemed a non-prohibited person considerations	http://classic.austlii.edu.au/cgi-bin/sinodisp/au/cases/vic/VSC/2002/435.html?stem=0&synonyms=0&query=vic%20consol_act%20f1996102%20s189

1.2 Initial Stages**1.1.1 Seeking an Interim Order and submissions.**

Section 53 – court may make an Interim Order to:

- Ensure the safety of the AFM; or
- Preserve any property; or
- Protect a child.

NB: Pursuant to Zion-Shalom (No2) – You do not need to show that FV has occurred.

Submissions:

- Serious allegation of FV
- Child present/witness

- Not the first time FV reported
- Criminal charges
- Purpose of Act is to maximise safety – an interim is required for this.

Section 54 – the RESP does not need to be present or served with a copy of the application for an Interim to be granted.

1.1.2 Conditions sought for an Order

Section 81 – court may include any conditions that appear necessary or desirable.

1.1.3 Submissions where an AFM is not supportive of an Interim.

The court is not limited in making an Interim Order because the AFM is not supportive.

The Court need only be satisfied by the requirements in s.53.

1.1.4 Power of FVSN in seeking an Interim Order.

Where a FVSN has been issued and there are no circumstances that would justify discontinuing the protection of the person until a final decision about the application – s.53(1)(c).

Pursuant to Zion-Shalom (No1) – Reverse onus on RESP to show reasons to discontinue the protection.

Submissions:

- First return of FVSN, no mitigating risk factors.
- Reasons which are not sufficient to discontinue the protection: Wanting to go home, disagreeing with the application, denial, AFM not supportive & RESP provides financial support

1.1.5 Where FVSN is less conditions than Police seeking.

Section 31 - A FVSN is considered an Application for an IVO.

The court is not limited by the conditions sought on a FVSN, they must consider the requirements for an Interim in s.53.

Submissions:

- Change in circumstances since FVSN put in place – breaches, further incidents, DFFH involved
- In assessing the risk, police view that more conditions ought be put in place to protect the AFM under s.53

1.1.6 Opposing an application by Defence to strike out.

Defence can only make an application on the following grounds – Magistrates Court (Family Violence) Rules 2018 – Rule 6.02

1. Scandalous, frivolous, vexatious
2. May prejudice, embarrass or delay the fair hearing of the proceeding
3. Otherwise, an abuse of process

Submissions to oppose:

- Force Defence to advise which of the above is the basis for the application (they won't even know they have to refer to it most times).
- Defence will usually say that the RESP denies the allegations and it is a frivolous application – oppose this on the basis that police have assessed that there is a need for protection based upon a report made.
- The application is made after Police have responded to an allegation of FV. The court does not need to be satisfied that FV has occurred (Zion Shalom No1), but the court needs to prioritise the considerations in s.1 and s.53.
- The application is in its early stages, anything raised by defence needs to be considered but protection and safety is paramount in the meantime.

1.1.7 Where Interim Order has been refused.

Where the court has heard an application for an Interim and has refused, the application should be withdrawn on the next occasion if there has been no change in circumstances.

However, Section 53(4) – the court may make an interim at any time after the making of the application. It can do so whether the court has previously made or refused to make an interim order.

Submissions:

- There has been a change in circumstances – new incidents, new breaches, charges laid

1.1.8 Where MIS-ID as to primary aggressor.

Where Defence raises that there has been a MIS-ID, FVCLO's should contact the Informant to advise that the issue has been raised. The Informant should be told to conduct an assessment as to whether this is correct or not.

The matter will need to be adjourned for such an investigation to occur – it will be the responsibility of the Informant and FVCLO.

1.1.9 Police Cross- Orders

There is a misconception that Police cannot have cross-applications. If there are two entirely separate incidents (on different dates), it is acceptable for us to have applied for cross-orders.

If we have cross-orders arising out of one incident, then we must assess who is the primary aggressor and who needs protection. Application will need to be adjourned for this assessment to be conducted at station level.

The Prosecutor in court will send this email to the FVLO OIC requesting the assessment or leave enough notes for admin to send.

1.3 Children

1.1.1 Power of the Court regarding children.

The Court has live powers when it comes to children.

Pursuant to section 53AA and 53AB – the court can make any order it sees fit for the protection of children on its own motion.

1.1.2 Finalising an Order where children are the AFM.

The limitations in s.75 (safe contact where AFM not supportive) do not apply where children are the AFM. i.e. IVO can be finalised in full no contact conditions even without the AFM child's consent

Section 77 – if a child has been exposed to FV the court must grant an order for that child.

Where the court has been limited to a s.75 (safe contact) order for an AFM, the court can make an order for a child under s.77B on its own motion.

1.1.3 Child turns 18 years old whilst on an order.

There is no provision in the Act that requires a child to be removed as a PP from the IVO once they turn 18.

If a child is 18 and wishes to be removed, they need to make an app to vary.

1.1.4 Suspension of Family Law Court Orders

Section 90 – Court can under s.68R revive, vary, discharge or suspend orders.

The court must have a copy of the FLC Order to do this.

Before making submissions, speak with the FV SUP as this has significant consequences.

1.1.5 If there is no Family Law Court Order and we want to prevent child contact

Section 91 – must assess whether the child having contact with the RESP/parent would jeopardise their safety.

If satisfied, the court must include a condition under s.93 prohibiting the child from spending time with or communicating with the RESP.

1.2 Final Order

1.1.1 Power to make a Final Order

Section 74 – 2 limb test:

1. Resp committed FV;
2. Likely to do so again

If the order is by consent, under section 78, the court does not need to be satisfied as to the test.

If a Magistrate does not want to make a Final Order despite everyone agreeing, refer to s.78.

1.1.2 Duration of an Order and submissions to make.

Section 97 – the court is to determine the length of an order – must consider the following:

1. Safety of AFM
2. Assessment by Applicant/Police to the level and duration of risk
3. AFMs views

Submissions:

- Seriousness – strangulation, pregnancy etc. high risk MARAM factors
- Police have assessed the risk under s.97(2)(b)
- Presence of child
- Previous IVOs
- Previous incidents of FV
- Criminal charges
- Breaches

Where the RESP is a child – no greater than 12 months unless exceptional circumstances exist – section 98. Use this sparingly.

Exceptional circumstances:

- Significant incident
- Not family members
- RESP child does not reside with AFM
- Granting the order will not interfere with schooling of the RESP child
- No reason for any contact between the parties

1.1.3 Finalising without AFM's consent.

Section 75 – if the AFM does not consent, the court has the power to grant a final IVO with these limited conditions:

1. No FV
8. Agency
9. Firearms authority cancelled
10. Weapons exemption cancelled

Does NOT apply for a child AFM. Refer 1.3 Children.

Some Magistrates will not agree with this interpretation. Don't push the point, just adjourn.

1.1.4 Finalising without AFM's position.

If we have attempted to contact an AFM on numerous occasions and they don't engage/respond, make the submission on s.75.

For example: "Your Honour, Police have made multiple attempts to contact this AFM to obtain a current view. This includes calls and requests to the Informant to contact. It is accepted that the narrative is inherently serious, however without their position we can only finalise a safe contact order under s.75. Should the AFM get in contact with Police, we can make an Application to Vary".

If the AFM is a child, you can see a Full No Contact Order regardless of contact or not with them. Refer 1.3 Children.

Section 75 – if the AFM does not consent, the court is limited in what conditions it can grant:

1. No FV
8. Agency
9. Firearms authority cancelled
10. Weapons exemption cancelled

1.1.5 Court attempting to finalise without Police consent.

Make these submissions only if you are satisfied resolving less than full no contact poses a significant real risk to safety.

Section 61 – the court must not proceed to hear a contested application on a mention date, unless all parties consent. The contested application involves the Police Applicant giving evidence – an Informant is never present on a mention date.

Section 78(5) – the court may refuse to make a final order or an order varying/revoking an order to which the parties have consented if the court believes the order may pose a risk to the safety of the parties or a child.

Submissions:

- Court is not permitted under s.61 to finalise the order unless it is listed as a Contested Hearing. We cannot run a Contested Hearing without the Informant present to give evidence.
- Police are not satisfied the proposed order will maximise the safety of the AFM under s.1 FVPA and as such, the court cannot be satisfied under s.78(5) given the police risk assessment.

1.3 Vary/Extend/Revoke

1.1.1 AFM Application to extend or vary or revoke

1. Extend – Police will support only if there have been breaches or inherently serious.
2. Vary UP – As above
3. Vary DOWN – refer table. Staggered approach by allowing contact via phone or 5m to assess the situation. Then move to safe contact on the return date.
4. Revoke – OPPOSED - refer table. Staggered approach by allowing contact via phone or 5m to assess the situation. Then move to safe contact on the return date.

If the court decides not to revoke an order, they can vary the order pursuant to s.100(3). There is no need for anyone to file an application to vary.

NB: Pursuant to s.100, the court is **not required** to grant an order to vary or revoke.

1.1.2 Application by Police to extend or vary

Extension - section 106

Variation - section 101

If an AFM is not supportive of a variation or extension, Police can only seek the variation or extension on conditions of no FV and agency.

1.1.3 Court/Defence seeks a variation without an application being filed.

An application to vary an order must be made upon a formal application – s.100

L v L & Anor – the court cannot vary an order on its own motion unless by consent.

If an Interim Order is in place, and Defence (or Magistrate) want the Court to reduce the conditions and we do not agree, make a submission.

- “Your Honour, there is no written application to vary before the court and the proposed variation is not by consent. Leading authority in L v L indicates the court cannot vary an order on its own motion”

1.1.4 Duration of a police app to vary a final order.

In the absence of an app to extend, the expiry date of a Final Order remains regardless of any variation to the order.

If you are finalising a variation and the expiration date is within a month, advise an FVCLO so that the Informant can be notified.

1.4 Service

1.1. Finalise where RESP not at court but served.

Section 61(2)(b) – if the court is satisfied that the RESP has been served with a copy of the **application** for an IVO and has not attended, the court can make a final order on a mention date.

RESP does not need to be served with interim IVO for the court to finalise in his absence.

1.2. Substituted service

Section 202C – court has the power to order substituted service to bring the document to the notice of the person to be served.

- Example – if a RESP is on Webex, seek substituted service by the email address. Ask the RESPs consent.

1.3. Order alternative service

Court may order alternative service – s. 202A

(1) A court may order that a document be served on a person other than personally by any means specified in the order, if satisfied that—

- (a) service other than personal service—
 - (i) is likely to bring the document to the attention of the person to be served; and
 - (ii) will not pose an unacceptable risk to the safety of the affected family member, protected person or any other person; and
 - (b) it is appropriate in all the circumstances to make the order.
- (2) The court may make an order for alternative service on the application of a party to the proceeding or on its own initiative.
- (3) If the court makes an order for alternative service, the court may order that the document be taken to have been served—
- (a) on the happening of any specified event; or
 - (b) on the expiry of any specified time.

1.4. Alternative service – post, electronic communication

Presumption as to effective service by post, electronic communication – s.202B

(1) Subject to any order under section 202A(3), in the absence of evidence to the contrary, a document is taken to have been served under an order for alternative service—

(a) if the document is required to be served by prepaid post to an address, at the time at which the document would have been delivered in the ordinary course of post; or

(b) if the document is required to be served by registered post to an address, at the time at which the document would have been ordinarily delivered by registered post.

(2) Subsection (1) applies despite anything to the contrary in section 49 of the Interpretation of Legislation Act 1984 .

(3) If an order for alternative service requires
that a document be served by electronic communication—

(a) the Electronic Transactions (Victoria) Act 2000 extends and applies to service of the document, whether or not the person to be served consented to information being given by means of an electronic communication, and as if the person had consented to service by electronic communication; and

(b) subject to any order under section 202A(3), in the absence of evidence to the contrary, the document is taken to have been served at the time of receipt referred to in section 13A of that Act.

1.5 Other

1.1.1 Substituting the AFM as Applicant

Rule 15.03 Magistrates Court (Family Violence Protection) Rules – General Power of Amendment

For the purpose of determining the real question in issue between the parties to any proceeding, or of correcting any defect or error in any proceeding, or of avoiding multiplicity of proceedings, the Court may at any stage order that any document (including an application) in a proceeding be amended or that any party have leave to amend any document in the proceeding.

Supported by NBT v Magistrates Court.

Submissions:

- After conducting a RA, Police are seeking to make an application under Rule 15.03 to substitute the AFM in as the Applicant. This will cease the Police involvement in the matter. The ability to make this application is supported by the case of NBT.

1.1.2 Application to strike out

Rule 6.02 Magistrates Court (Family Violence Protection) Rules - Striking out proceeding

The Court may order that the whole or part of the application be struck out or amended if a proceeding—

- a. is scandalous, frivolous or vexatious; or
- b. may prejudice, embarrass or delay the fair hearing of the proceeding; or
- c. is otherwise an abuse of the process of the Court

1.1.3 Costs

Section 154 FVPA – all parties are to bear their own costs for any hearing.

The only exception is found under 154(3)(b) – where the court finds that the making of an application was vexatious, frivolous or in bad faith.

NB: withdrawing an application is no grounds for costs – 154(4).

1.1.4 Rules of Evidence

Do not apply.

Section 65(1) – the court may inform itself in any way it thinks fit, despite any rules of evidence to the contrary.

Section 65(3) – the court can refuse to admit or limit evidence if it is just and equitable or the probative value is outweighed by the prejudice to the RESP.

1.1.5 s.189 Firearms Application

Refer separate guide.

Pickford v Chief Commissioner of Police [2002] VSC 435 (10 October 2002)

In this case there are a number of considerations which, judged according to that test, lead me to the conclusion that the applicant should be relieved of the consequences of being a prohibited person for the purposes of Division 4 of the Act.

1. First, it appears upon the uncontradicted evidence that firearms were not involved in the circumstances which led to the making of the restraint order.
2. Secondly, there are strong indications that the application for the restraint order was motivated, at least to a considerable extent, by collateral motives.
3. Thirdly, the applicant's record, which has been set out above, is exemplary.
4. Fourthly, as the evidence shows, the applicant has a genuine and not unhealthy interest in firearms and substantial legitimate reasons for wanting to hold firearms licences under the Act.
5. Fifthly, and perhaps most importantly, the Chief Commissioner does not oppose the application or suggest in any way that it should not be allowed. I think that I am entitled to take the view, and therefore I do, that, where the Chief Commissioner of Police chooses not to appear upon an application like this, the Commissioner does not know of or consider that there may be any reason why the application should not be granted.

1.1.6 Bail vs. IVO

Section 175 – bail conditions override any IVO.

1.1.7 FVIVO vs. PSIO

If application made under FVPA, but should be PSIOA – s.138 PSIOA

If application made under PSIOA, but should be FVPA – s.176E FVPA

There is no requirement to file a new application, the Act allows for a simple swap.

1.6 Disclosure requirements

In short – there are no requirements for materials to be disclosed. The exception is FBPs as these are court ordered.

1. Section 4 of the Civil Procedure Act (Disclosure obligations) does not apply to the FVPA or PSIOA.
2. Rule 15.01 Magistrates Court (Family Violence Protection) Rules: RA must not be disclosed to RESP or used as evidence.

1.7 Release of DFFH letters/confidential information

If submitting a DFFH letter or report to the Court, raise that this is considered confidential information subject to s144C. As a result, the Magistrate is required to read the document to determine its released in two parts:

- i. To Legal Representations
- ii. To AFM/RESP/Parties

If the report/letter contains disclosures from either party, or a child, it is not appropriate that is released to the parties for the safety/confidentiality/privacy of the persons.

FAMILY VIOLENCE PROTECTION ACT 2008 - SECT 144C

Meaning of excluded information

In this Part, confidential information is excluded information if it is of a kind prescribed or the collection, use or disclosure of that information could be reasonably expected to—

- (a) endanger a person's life or result in physical injury; or
- (b) prejudice the investigation of a breach or possible breach of the law or prejudice the enforcement or proper administration of the law in a particular instance; or
- (c) prejudice a coronial inquest or inquiry; or
- (d) prejudice the fair trial of a person or the impartial adjudication of a particular case; or
- (e) disclose the contents of a document, or a communication, that is of such a nature that the contents of the document, or the communication, would be privileged from production in legal proceedings on the ground of legal professional privilege or client legal privilege; or
- (f) disclose, or enable a person to ascertain, the identity of a confidential source of information in relation to the enforcement or administration of the law; or
- (g) contravene a court order or a provision made by or under this Act or any other Act that—
 - (i) prohibits or restricts, or authorises a court or tribunal to prohibit or restrict, the publication or other disclosure of information for or in connection with any proceeding; or
 - (ii) requires or authorises a court or tribunal to close any proceeding to the public; or
- (h) be contrary to the public interest.